

Court No. - 29

Case :- WRIT - C No. - 26380 of 2019

Petitioner :- Pradeep Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Pusp Raj Singh, Mahesh Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Sri Krishna Agarawal, learned counsel appearing for the Electricity Distribution Division.

The grievance of the petitioner is regarding the correctness of the electricity bill dated 05.01.2019 for Rs.20,64,080/- and recovery in pursuance thereof.

The correctness of the said bill was challenged by the petitioner earlier by filing Writ C- No. 3524 of 2019. The said writ petition was disposed off with the consent of the parties on 31.01.2019 with a direction to the Executive Engineer to consider the representation/objection of the petitioner dated 18/19.01.2019 within a time bound period.

The aforesaid objection/representation of the petitioner was with regard to surcharge and interest amounting to Rs.5,50,000/-. The representation/objection of the petitioner was duly considered and has been decided by the Executive Engineer by the order dated 29.04.2019 and it has been held that petitioner is not entitled to any rebate in payment of interest and surcharge.

The aforesaid order has been challenged by the petitioner by means of this writ petition.

The dispute regarding the correctness of the electricity bill and the recovery thereof or to the validity of the order passed by the Executive Engineer on the representation/objection of the petitioner are the matters which can be agitated by the petitioner by taking recourse to the proceedings before the Consumer Grievance Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid alternative remedy so available to the petitioner, we do not deem it proper to exercise our extraordinary jurisdiction in the matter.

Accordingly, the writ petition is ***dismissed*** on the ground of alternative remedy with the aforesaid liberty.

Order Date :- 12.9.2019

Sattyarth